

Fly GACA — Legal Gap Audit

SECTION 02-legal TYPE audit STATUS **active** OWNER Founder UPDATED 2026-08-19

[!NOTE] **Superseded 2026-08-19 — retained as a record, not corrected.** This document captured the position as it stood on its own date. The price card, the B2B pricing model and the platform architecture have all changed since: see [01-governance/decision-log.md](#) DEC-011 and [03-finance/monetization.md](#) for what is current. Nothing below has been edited — its value is that it records what was decided or observed at the time, including the parts that later turned out to be wrong.

Date: 2026-06-14

Prepared by: Claude (AI assistant) — for founder review and Saudi-licensed legal counsel sign-off

Scope: 02-legal/, 01-governance/, 04-compliance-ksa/ + live PWA pages (terms.html, privacy.html, disclaimer.html)

Purpose: Map existing legal coverage against what a KSA-based, consumer-facing SaaS/edtech platform with AI requires; identify gaps; prioritise against the launch gate (ROADMAP §6/§7 — legal track + PDPL DPIA named as real blockers).

IMPORTANT NOTICE — NOT LEGAL ADVICE. This audit is a business-operations summary prepared by an AI assistant. It is not legal advice and does not substitute for advice from a Saudi-qualified lawyer. Every gap, risk rating, and draft document must be reviewed and validated by qualified Saudi legal counsel before any reliance or publication.

Part 1 — Inventory of Existing Documents

02-legal/ (14 items)

#	File	What it covers	Status
L-01	customer-agreement-eu1a.docx	Paid subscription T&Cs for Pro + Academy tiers; licence grant; prohibited use; payment & refund (30-day individual; prorated academy); data privacy pointer; IP; limitation of liability; SCCA arbitration	Draft v1.0, May 2026 — comprehensive but signed/B2B focus; does not fully serve anonymous public visitors
L-02	mutual-nda.docx	Standard mutual NDA for external discussions	Generic template
L-03	one-way-nda.docx	Disclosing-party NDA	Generic template

#	File	What it covers	Status
L-04	ip-assignment-agreement.docx	Contractor/employee IP assignment to Fly GACA	Internal/HR use
L-05	confidentiality-and-non-compete-agreement.docx	Staff confidentiality + non-compete	Internal/HR use
L-06	influencer-creator-partnership-agreement.docx	Creator/affiliate deals	Marketing use
L-07	service-level-agreement-sla.docx	SLA for academy/B2B	B2B use
L-08	60-day-pilot-agreement.docx	Beta/pilot school engagement	B2B pilot use
L-09	lawyer-brief.md / .docx	IP opinion brief for Saudi IP lawyer (P0-1 corpus rights; P0-2 name)	Working doc — awaiting lawyer
L-10	lawyer-shortlist.md	Candidate Saudi law firms	Working doc
L-11	brief-defensible-naming.md	Options analysis for "Fly GACA" brand risk	Working doc
L-12	email-routing.md	Internal: email alias scheme	Operational doc
L-13	risk-memo.md	Investor risk inventory (R1-R10)	Internal analysis
L-14	lawyer-brief.docx	(Duplicate/compiled of L-09)	Working doc

01-governance/ (12 items relevant)

#	File	What it covers
G-01	anti-bribery-aml-and-whistleblower-policy.docx	FCPA/KSA anti-corruption; AML; whistleblower channel
G-02	board-pack-template.docx	Board reporting template
G-03	code-of-conduct.docx	Staff code of conduct
G-04	decision-log-template.docx	Governance decision logging
G-05	ESOP Plan.docx	Employee stock option plan
G-06	founders-agreement.docx	Founder equity and governance

#	File	What it covers
G-07	shareholders-agreement-sha.docx	Shareholder rights and mechanics
G-08	LICENSE	Open-source licence (repo)
G-09	CODE_OF_CONDUCT.md	Public contributor CoC (GitHub-style)
G-10	CONTRIBUTING.md	Open-source contribution guide
G-11	SECURITY.md	Security disclosure policy
G-12	CLAUDE.md	AI agent briefing doc (internal)

04-compliance-ksa/ (13 items)

#	File	What it covers
C-01	pdpl-compliance-program-and-dpia.docx	Full PDPL framework: lawful bases, data inventory, rights process, cross-border rules, sub-processor register, DPIA for Captain Adel AI — internal compliance doc
C-02	sub-processor-list-and-dpa-register.docx	Sub-processor DPA register (Google Cloud, Moyasar, future analytics)
C-03	information-security-policy.docx	ISP aligned to ISO 27001 / CITC
C-04	Business Continuity & Disaster Recovery Plan.docx	BCP/DR
C-05	misa-investment-license-application-bundle.docx	MISA FDI/local entity application
C-06	monshaat-sme-registration-kit.docx	SME registration
C-07	ntdp-application.docx	National Technology Development Programme
C-08	saudi-tax-and-compliance-calendar.docx	VAT/Zakat deadlines
C-09	saudization-nitaqat-compliance-plan.docx	Saudization planning
C-10	tamheer-and-doroob-program-application-pack.docx	Graduate training programmes
C-11	vat-compliance-memo.docx	ZATCA VAT analysis
C-12	vendor-management-policy.docx	Vendor due diligence

#	File	What it covers
C-13	zatca-fatoora-e-invoicing-compliance-pack.docx	E-invoicing compliance

Live PWA pages (flygaca/ app — in-product)

#	Page	Content status
P-01	terms.html	Draft Terms of Use — public-visitor focused, lightweight, KSA-governed; marked "pending legal review"; email contact still shows old hello@flygaca.com not i@flygaca.com
P-02	privacy.html	Draft Privacy Notice — PDPL-aligned, cookieless analytics explained, pre-account stage; marked "pending legal review"
P-03	disclaimer.html	Draft Legal Disclaimer — independent/not-official positioning; AI assistant scope; AIRAC caveat; "not for operational use"

Part 2 — Gap Analysis Matrix

Legend: P0 = launch blocker | P1 = must-have within 30 days of launch | P2 = within 90 days | P3 = pre-Series A / growth stage

2.1 Public-Facing User-Facing Documents

Document	Status	Priority	Risk if missing
Website Terms of Use (public, anonymous visitor)	Draft exists in terms.html — but thin on: account-stage terms, AI disclaimer integration, Arabic language clause, PDPL data rights pointer, contact email consistency	P0 — must be final + lawyer-reviewed before public launch	Without valid T&Cs, no enforceable limits on use; no liability cap; no jurisdiction clause for anonymous visitors
Privacy Notice / PDPL Notice (public-facing)	Draft exists in privacy.html — covers pre-account waitlist stage well; will need material update when accounts go live (PDPL Art. 11 requires notice at point of collection)	P0 — current draft adequate for pre-account stage only; new version required before account/payment launch	PDPL breach: failure to notify data subjects = administrative penalty up to SAR 1M (PDPL Art. 29)
Disclaimer & Educational-Use Notice	Draft exists in disclaimer.html — good structure; covers independence, AIRAC, Captain Adel AI, no-operational-use	P0 — needs lawyer review and finalisation; currently marked "Draft · pending legal review"	Without clear disclaimer, passing-off risk amplified; liability for pilot reliance on incorrect AI output

Document	Status	Priority	Risk if missing
Cookie / Tracking Notice	MISSING — <code>privacy.html</code> explains cookieless analytics but there is no standalone Cookie Policy or cookie consent mechanism	P1 — required if any analytics or functional cookies used; Cloudflare Web Analytics described as cookieless but Firebase auth/Firestore may set cookies when accounts launch	Non-compliance with PDPL Art. 29 (transparency obligation); potential CITC enforcement
Acceptable Use Policy (AUP)	Partially covered in <code>terms.html</code> §3 and <code>customer-agreement-eula.docx</code> §3 — but no standalone AUP; no AI-specific conduct rules; no content-reporting mechanism	P1 — needed before Captain Adel / account launch; especially for AI misuse	Operational reliance on contractual terms only; gaps in enforcement against scraping, prompt injection abuse, GACA-authority impersonation
Refund & Cancellation Policy (standalone, public)	Covered in <code>customer-agreement-eula.docx</code> §4 — but that document is B2B/signed-agreement only; anonymous PWA pricing page has no public-facing refund statement	P1 — ZATCA/Saudi consumer protection expectations; Moyasar requires merchant to display refund policy; App Store (Android) submission may require it	Consumer protection exposure; payment dispute escalations; App Store rejection risk

2.2 Data & Privacy Infrastructure

Document	Status	Priority	Risk if missing
PDPL DPIA (Data Protection Impact Assessment)	Exists in <code>04-compliance-ksa/pdpl-compliance-program-and-dpia.docx</code> — covers Captain Adel AI data flows, risk register, mitigation, sign-off	Named launch blocker in Review-Action-Plan §7 — status: internally signed by founder-as-DPO but not yet reviewed by SDAIA-qualified counsel	Without completed DPIA, regulator could deem AI processing unlawful; SDAIA enforcement risk
Full post-account Privacy Notice	<code>privacy.html</code> is pre-account (waitlist only); accounts involve GACA licence numbers, payment data, exam scores, chat history	P0 before account launch — material change in data processing requires updated notice per PDPL Art. 11	Silent processing of new data categories = PDPL breach
Sub-Processor / DPA Register	Exists in <code>04-compliance-ksa/sub-processor-list-and-dpa-register.docx</code> — covers Google Cloud, Moyasar; future analytics TBD	P1 — register is internal only; public Privacy Notice must reference sub-processors or link to sub-processor list	PDPL transparency gap
Data Retention & Deletion Schedule	Referenced within PDPL doc (retention periods listed in data inventory) but no standalone schedule; no public deletion-request procedure beyond email	P1	PDPL Art. 7–12 data-subject rights compliance

2.3 Content, IP & Third-Party Rights

Document	Status	Priority	Risk if missing
GACA Corpus / Content Rights Opinion	Legal question documented in <code>lawyer-brief.md</code> (P0-1); awaiting Saudi IP lawyer opinion	P0 — absolute launch blocker per ROADMAP	If corpus hosting is impermissible, entire library product collapses; SAR 1M copyright fine under 2022 Copyright Law
Brand / Trademark Opinion ("Fly GACA" name)	Documented in <code>brief-defensible-naming.md</code> and <code>lawyer-brief.md</code> (P0-2); awaiting opinion	P0 — absolute launch blocker per ROADMAP	Unregistrable mark; passing-off; potential SAIP or GACA cease-and-desist
Takedown / DMCA-equivalent Procedure	MISSING — no documented content takedown process; no publicly stated procedure for notifying Fly GACA of alleged IP infringement	P1	Without a takedown procedure, Fly GACA cannot benefit from safe-harbour analogues; increased liability for third-party IP complaints
Content Licensing / Attribution Policy	MISSING — terms reference GACA as source but no structured attribution/citation policy; no procedure for user-submitted content rights	P1	Copyright ambiguity on re-used regulatory excerpts; user-generated-content IP vesting
AI Output Disclaimer (Captain Adel)	Partially in <code>disclaimer.html</code> §7 and <code>customer-agreement-eula.docx</code> §3.2 — but no consolidated, standalone AI-specific policy	P1	Aviation safety liability; AI Act analogues (EU/KSA future regulation); hallucination liability gap

2.4 B2B / Commercial Contracts

Document	Status	Priority	Risk if missing
Customer Agreement EULA	Comprehensive draft exists (L-01) — covers Pro and Academy tiers, SCCA arbitration, PDPL, IP, limitation of liability	P0 before B2B sales — needs lawyer review and Arabic translation	Unenforceable contract; jurisdiction gaps
Order Form template	Referenced in EULA but no standalone Order Form template exists	P1	Cannot close Academy deals without an agreed order form
White-Label / Reseller Agreement	EULA §3.1 reserves White Label rights but no White Label agreement exists	P2	Cannot onboard a reseller or white-label partner
SLA	Exists (<code>service-level-agreement-sla.docx</code>)	Adequate for now	
60-Day Pilot Agreement	Exists	Adequate for now	

Document	Status	Priority	Risk if missing
DPA / Data Processing Agreement (B2B)	MISSING — EULA §5 references PDPL but no separate DPA for academy customers who are data controllers in their own right	P1 — academies processing cadet data need their own DPA with Fly GACA	Academy customers cannot sign up in PDPL-compliant manner without a DPA

2.5 Governance & Internal

Document	Status	Priority	Risk if missing
Founders Agreement	Exists (G-06)	Adequate	
SHA	Exists	Adequate	
Anti-Bribery / AML / Whistleblower	Exists (G-01)	Adequate	
ESOP Plan	Exists (G-05)	Adequate	
IP Assignment	Exists (L-04)	Adequate	
Confidentiality / NDA suite	Exists (L-02, L-03, L-05)	Adequate	
Incident Response Plan (data breach)	PARTIALLY MISSING — ISP in C-03 covers security; PDPL requires a breach notification procedure (PDPL Art. 20: notify SDAIA within 72 hours of discovering a breach likely to cause serious harm)	P1	PDPL Art. 20 breach: failure to notify SDAIA within 72 hours

Part 3 — Priority Matrix Against Launch Gate

LAUNCH GATE (per ROADMAP §7 "real blockers")

ABSOLUTE BLOCKS — nothing ships without these:

1. Lawyer opinion on corpus rights (P0-1)
2. Lawyer opinion on "Fly GACA" name (P0-2)
3. Final, lawyer-reviewed Terms of Use
4. Final, lawyer-reviewed Disclaimer & Educational-Use Notice
5. Privacy Notice updated for account-stage data (before accounts launch)
6. PDPL DPIA — internal version exists; needs PDPL counsel sign-off before AI features go live

P0 — BEFORE ANY PUBLIC TRAFFIC:

[DONE-DRAFT] Terms of Use (terms.html) — needs legal review + email fix

[DONE-DRAFT] Privacy Notice (privacy.html) — adequate for pre-account; needs update for accounts

[DONE-DRAFT] Disclaimer (disclaimer.html) — needs legal review

[OUTSTANDING] IP/corpus rights legal opinion

[OUTSTANDING] Brand name legal opinion

P1 — BEFORE ACCOUNT / PAYMENT LAUNCH (~30 days post public launch):

[] Cookie Policy / consent mechanism (if any cookies set on account pages)

[] Full post-account Privacy Notice (PDPL-compliant, accounts + AI)

[] Standalone Acceptable Use Policy

[] Public Refund & Cancellation Policy page

[] B2B Data Processing Agreement (DPA) for Academy customers

[] Takedown / IP complaint procedure

[] Data breach notification procedure (SDAIA 72-hour rule)

[] Order Form template

P2 — WITHIN 90 DAYS POST-LAUNCH:

[] AI Output / Captain Adel standalone policy

[] Content Attribution & Citation Policy

[] White-Label Agreement (if channel sales pursued)

P3 — PRE-SERIES A:

[] Arabic-language versions of all P0/P1 documents

[] External PDPL audit by certified KSA privacy consultant

[] Full trademark registration (pending P0-2 opinion)

Part 4 — Key Risk Notes

R-PDPL-1 (Critical): The existing `privacy.html` is correctly scoped to the pre-account waitlist phase. The moment Fly GACA goes live with accounts, payment data, GACA licence numbers, exam scores, and AI chat logs, the current Privacy Notice becomes materially inadequate. A revised, full-scope PDPL notice must be ready to replace it at account launch — not after.

R-PDPL-2 (Critical): PDPL Art. 20 requires notification to SDAIA within 72 hours of discovering a personal data breach that is likely to cause serious harm. The existing ISP (C-03) and BCP (C-04) do not appear to contain a specific SDAIA breach-notification procedure. This must be documented before accounts go live.

R-AI-1 (High): Captain Adel operates in a safety-adjacent domain (aviation regulations). The existing `disclaimer.html` §7 provides partial protection, but there is no standalone AI policy that sets out what the system will and will not do, how errors are reported, and what the liability position is. In a domain where a pilot could conceivably act on an AI response, this gap is a reputational and legal risk.

R-AUP-1 (Medium-High): The only AUP-equivalent text is buried in `terms.html` §3 and `customer-agreement-eula.docx` §3.2. There is no standalone, prominently linked Acceptable Use Policy and no published mechanism for users to report AUP violations or problematic AI outputs. This is both a content-moderation gap and a PDPL transparency gap.

R-B2B-1 (High): Academy customers are independent data controllers processing cadet personal data (names, GACA licence numbers, exam scores). When Fly GACA processes this data on their behalf, Fly GACA acts as a data processor. PDPL requires a written Data Processing Agreement between controller (academy) and processor (Fly GACA). No such agreement currently exists. This blocks any legally compliant B2B Academy deal.

R-CORP-1 (Note): The legal entity has not yet been incorporated (per PHASE0 status). Until entity formation is complete, all contracts are personal obligations of the founder. This does not block a soft launch of the free public library but must be resolved before any paid transaction.

This audit covers documents known as of 2026-06-14. It must be reviewed by Saudi-qualified legal counsel before any reliance.